

The Delhi Metro Railway (Salary, Allowances, Other Terms and Conditions of Service of the Claims Commissioner) Rules, 2007

Source: <https://indiankanoon.org/doc/151423798/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

Union of India - Act

The Delhi Metro Railway (Salary, Allowances, Other Terms and Conditions of Service of the Claims Commissioner) Rules, 2007

UNION OF INDIA

India

The Delhi Metro Railway (Salary, Allowances, Other Terms and Conditions of Service of the Claims Commissioner) Rules, 2007

Rule

THE-DELHI-METRO-RAILWAY-SALARY-ALLOWANCES-OTHER-TERMS-AND-CONDITIONS-OF-SERVICE-OF-THE-CLAIMS-COMMISSIONER-RULES-2007 of 2007

Published on 19 March 2007

Commenced on 19 March 2007

[This is the version of this document from 19 March 2007.]

[Note: The original publication document is not available and this content could not be verified.]

The Delhi Metro Railway (Salary, Allowances, Other Terms and Conditions of Service of the Claims Commissioner) Rules, 2007

Published vide Notification No. G.S.R. 235(E), 19th March, 2007

Ministry of Urban Development

G.S.R. 235(E). - In exercise of the powers conferred by clause (ii) of Sub-section (2) of Section 56 read with Sections 51

of the Delhi Metro Railway (Operation and Maintenance) Act, 2002 (60 of 2002), the Central Government hereby makes the following rules, namely :-

1.

Short title and commencement.

(1)

These rules may be called the Delhi Metro Railway (Salary, Allowances, Other Terms and Conditions of Service of the Claims Commissioner) Rules, 2007.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires:-

(a)

"Act" means the Delhi Metro Railway (Operation and Maintenance) Act, 2002 (60 of 2002).

(b)

"Claims Commissioner" means the Claims Commissioner appointed under Section 48 of the Act.

(c)

"section" means a section of the Act;

(2)

All other words and expressions used herein but not defined shall have the same meanings respectively assigned to them in the Act.

3.

Salary and allowances.

(1)

The Claims Commissioner shall be entitled to such pay and allowances as are admissible to a Judge of a High Court: Provided that in case of appointment of a person as Claims Commissioner, who has retired as a Judge of it High Court and who is in receipt of or has received or has become entitled to receive any retirement benefits, by way of pension, gratuity, employer's contribution to Contributory Provident Fund or other forms of retirement benefits, the pay shall be reduced by the gross amount of pension or pensionary equivalent of employer's contribution to Contributory Provident Fund or other forms of retirement benefits, if any, drawn or to be drawn by him:

Provided further that in the case of appointment of a person as Claims Commissioner, who has retired from service after holding a post in Grade 1 of Indian Legal Service, or has retired from a civil judicial post carrying scale of pay not less than that of a Joint Secretary to the Government of India after holding that post for at least three years, and who is in receipt of, or has received or has become entitled to receive any retirement benefits, by way of pension, gratuity, employer's contribution to Contributory Provident Fund or other forms of retirement benefits, the pay shall be reduced by the gross amount of pension or pensionary equivalent of Employer's Contributory Provident Food or other forms of retirement benefits, if any, drawn or to be drawn by him.

4.

Accommodation.

(1)

The Claims Commissioner, if he is serving or a retired Judge of a High Court, shall be entitled to residential accommodation on terms as admissible to a serving Judge of a High Court.

(2)

Where the Claims Commissioner is not provided with the accommodation referred to in sub-rule (1), he may be paid, every month, a House Rent Allowance at the rate of thirty per cent of his basic pay.

5.

Facilities for medical treatment.

- The Claims Commissioner shall be entitled to medical treatment and hospital facilities, applicable to the officer of equivalent pay scale as provided in the Central Government Health Scheme.

6.

Conditions of service, etc.

- Notwithstanding anything contained in these rules, the conditions of service of and other facilities available to the Claims Commissioner shall be the same as admissible to a serving Judge of a High Court.

7.

Office accommodation and other facilities.

- The metro railway administration shall provide necessary office accommodation, staff, conveyance and other facilities and assistance to the Claims Commissioner for the discharge of his duties under the Act.

8.

Residual provision.

- Matters relating to the conditions of service of the Claims Commissioner with respect to which no express provision has been made in these rules shall be referred in each case to the Central Government for its decision and the decision of the Central Government thereon shall be binding on the said Claims Commissioner.

9.

Power to relax.

- The Central Government may, by order, for reason to be recorded in writing, relax the provisions of any of these rules, in respect of any class or categories of persons.

Related AI tags, queries and research notes

Translation